

# Court Case Action Report

**Case ID:** 20

**Date:** 01/05/2026

**Department:** High Court of Gujarat at Ahmedabad

**Priority:** High

## Key Directives:

- The Court is expected to commit the convict to jail in terms of a warrant that would authorise confinement for the period he is to undergo such imprisonment.
- The Court is under an obligation after receipt of an intimation about the dismissal of the appeal or revision preferred by the convicts, to follow the procedure under Section 418 Cr.PC for apprehension of the accused, in case he has not surrendered voluntarily, and to commit him to jail to undergo the sentence awarded to him.
- If the accused is not on bail, execution of the sentence cannot be suspended under section 389(3) Cr.PC to enable him to prefer an appeal.

## Action Plan:

Compliance required

## Execution Steps:

- Review the dismissal of the appeal or revision preferred by the convict and obtain an intimation from the relevant authorities. (Owner: High Court of Gujarat at Ahmedabad - Judicial Department, Due: 2026-05-23)
- Prepare a warrant authorising confinement for the period the convict is to undergo imprisonment, in accordance with the Court's decision. (Owner: High Court of Gujarat at Ahmedabad - Judicial Department, Due: 2026-05-23)
- Serve the warrant on the convict and apprehend him in case he has not surrendered voluntarily, in accordance with the procedure under Section 418 Cr.PC. (Owner: High Court of Gujarat at Ahmedabad - Judicial Department, Due: 2026-05-23)
- Commit the convict to jail to undergo the sentence awarded to him, in accordance with the warrant and relevant laws. (Owner: High Court of Gujarat at Ahmedabad - Judicial Department, Due: 2026-05-23)

## Deadline:

2026-05-23

## Summary:

**Key Facts:** The applicant, Patel Ramzani Yakub, has filed a criminal revision application to convert a non-bailable warrant into a bailable warrant. The warrant was issued by the Judicial Magistrate First Class, Vadodara, on 6.3.2026, after the applicant was convicted under Section 138 of the Negotiable Instruments Act, 1881. The applicant wants to challenge the conviction order and sentence but cannot do so due to the non-bailable warrant.

**Court Decision:** The court has allowed the applicant's prayer to convert the non-bailable warrant into a bailable warrant, enabling the applicant to move the Appellate Court to challenge the conviction judgment.

**Required Action:** The applicant is required to file an appeal before the Appellate Court challenging the judgment of conviction and sentence.

**Verification Status:**

APPROVED